

# An Act

ENROLLED SENATE  
BILL NO. 1567

By: Stanley of the Senate

and

Fetgatter of the House

An Act relating to the practice of nursing; amending Section 4, Chapter 340, O.S.L. 2025 (59 O.S. Supp. 2025, Section 479.1), which relates to supervising physician of Advanced Practice Registered Nurse; modifying certain restriction on supervision fees; amending Section 1, Chapter 340, O.S.L. 2025 (59 O.S. Supp. 2025, Section 567.4c), which relates to independent prescriptive authority for Advanced Practice Registered Nurse; excluding certain application from specified provisions of law; prohibiting certain requirements by the Oklahoma Board of Nursing; updating statutory language; updating statutory references; and providing an effective date.

SUBJECT: Advanced Practice Registered Nurses

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 4, Chapter 340, O.S.L. 2025 (59 O.S. Supp. 2025, Section 479.1), is amended to read as follows:

Section 479.1. A. As used in this section:

1. "Advanced Practice Registered Nurse" has the same meaning as defined in Section 567.3a of ~~Title 59 of the Oklahoma Statutes~~ this title, except that such term does not include a Certified Registered Nurse Anesthetist;

2. "Board" means the State Board of Medical Licensure and Supervision or the State Board of Osteopathic Examiners, or both, as the context indicates; and

3. The terms "supervising physician" and "supervision" have the same meaning as defined in Section 567.3a of ~~Title 59 of the Oklahoma Statutes~~ this title.

B. To be eligible to serve as a supervising physician for an Advanced Practice Registered Nurse who has not obtained independent prescriptive authority under ~~Section 1 of this act~~ Section 567.4c of this title, the physician shall meet the following criteria:

1. Have possession of a full and unrestricted license to practice allopathic or osteopathic medicine issued by the State Board of Medical Licensure and Supervision or the State Board of Osteopathic Examiners;

2. Have possession of a valid registration to prescribe controlled substances issued by the Drug Enforcement Administration and the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control; and

3. Be trained and fully qualified in the field of the Advanced Practice Registered Nurse's specialty as determined by the physician's respective Board; provided, however, a supervising physician for a Certified Nurse-Midwife may be a family practice physician, obstetrician, or gynecologist.

C. A supervising physician shall enter into a written supervision agreement with each Advanced Practice Registered Nurse he or she supervises. The supervising physician shall file the supervision agreement with his or her respective Board in the manner prescribed by such Board. The supervision agreement shall specify:

1. Any fees charged to the Advanced Practice Registered Nurse for supervision services in accordance with subsection D of this section;

2. The scope of the Advanced Practice Registered Nurse's prescriptive authority, subject to any limits on scope of

prescriptive authority provided by the rules of the Oklahoma Board of Nursing;

3. A description of the extent of the supervision required;

4. The duties and responsibilities of the supervising physician;

5. Procedures for notice to be provided by the supervising physician to Advanced Practice Registered Nurses for periods of absence in accordance with subsection E of this section; and

6. One or more alternate physicians designated to supervise the Advanced Practice Registered Nurse in such periods of absence in accordance with the rules promulgated under subsection H of this section.

D. 1. A supervising physician may charge a reasonable fee to the Advanced Practice Registered Nurse for his or her supervision services. Any such fees shall be:

- a. disclosed in the supervision agreement required under subsection C of this section,
- b. appropriate based on the actual duties and responsibilities of the supervising physician as outlined in the supervision agreement, and
- c. a fair market value ~~hourly~~ rate in accordance with the rules promulgated under subsection H of this section, or by mutual agreement between the Advanced Practice Registered Nurse and supervising physician.

2. The provisions of this subsection shall apply only to compensation received by the supervising physician directly from the Advanced Practice Registered Nurse. This subsection shall not be construed to:

- a. preclude a supervising physician from entering into a payment arrangement for supervision fees to be paid by his or her employer or health care entity in lieu of the Advanced Practice Registered Nurse,

- b. preclude an employer or health care entity of a supervising physician from prohibiting, limiting, or otherwise addressing such supervision fees through policies, contracts, or bylaws, or
- c. apply to or impact any compensation a supervising physician receives from his or her employer or health care entity for supervision services.

E. A supervising physician shall notify all Advanced Practice Registered Nurses under his or her supervision of reasonably anticipated periods of unavailability or incapacity on the part of the supervising physician. Notice shall be given by the method agreed to by the supervising physician and the Advanced Practice Registered Nurse within the written supervision agreement.

F. The supervising physician shall report to his or her respective Board, and shall notify all Advanced Practice Registered Nurses under his or her supervision of, any changes to the supervising relationship within thirty (30) calendar days including, but not limited to, the addition or removal of an Advanced Practice Registered Nurse under the physician's supervision or a change to the physician's practice address or contact information. The physician's supervision agreements shall be amended as necessary to reflect any such changes.

G. The State Board of Medical Licensure and Supervision and the State Board of Osteopathic Examiners shall not charge any fees to supervising physicians or Advanced Practice Registered Nurses for the maintenance or oversight of supervision agreements or other administrative functions related to the implementation or enforcement of this section.

H. The State Board of Medical Licensure and Supervision and the State Board of Osteopathic Examiners shall promulgate a uniform set of rules establishing standards for proper supervision of Advanced Practice Registered Nurses who have not obtained independent prescriptive authority under ~~Section 1 of this act~~ Section 567.4c of this title, including:

1. The charging of reasonable fees to provide supervision services. The rules shall establish a fair market value hourly rate for such fees, which shall be redetermined biennially;

2. Continuous availability of direct communications either in person or by electronic communications between the Advanced Practice Registered Nurse and supervising physician;

3. Oversight and acceptance of responsibility for the ordering and transmission of written, telephonic, electronic, or oral prescriptions for drugs and other medical supplies, subject to the formulary established by the Oklahoma Board of Nursing;

4. Review of prescribing patterns of the Advanced Practice Registered Nurse;

5. The delineation of a plan for emergencies; and

6. The designation of one or more alternate physicians in the absence of the supervising physician.

I. A supervising physician may be subject to disciplinary action by his or her respective Board for failure to comply with the provisions of, or the rules promulgated under, this section including, but not limited to, failure to provide proper supervision.

J. If either Board imposes limits through rule on the number of Advanced Practice Registered Nurses that a supervising physician may supervise, such limits shall not apply when an Advanced Practice Registered Nurse is practicing in a hospital licensed by the State Department of Health.

K. The Executive Director of each Board shall report annually to the respective Board the number of complaints received in relation to this section.

L. The State Board of Medical Licensure and Supervision and the State Board of Osteopathic Examiners shall each create and maintain on the respective Board's website a list of physicians who are available to supervise Advanced Practice Registered Nurses.

SECTION 2. AMENDATORY Section 1, Chapter 340, O.S.L. 2025 (59 O.S. Supp. 2025, Section 567.4c), is amended to read as follows:

Section 567.4c. A. An Advanced Practice Registered Nurse recognized by the Oklahoma Board of Nursing as a Certified Nurse Practitioner, Clinical Nurse Specialist, or Certified Nurse-Midwife who has completed a minimum of six thousand two hundred forty (6,240) clinical practice hours with prescriptive authority supervised by a physician may apply to the Oklahoma Board of Nursing for authority to prescribe and order independent of supervision.

B. The application for independent prescriptive authority shall include proof that the Certified Nurse Practitioner, Clinical Nurse Specialist, or Certified Nurse-Midwife:

1. Holds a valid, current license in the appropriate Advanced Practice Registered Nurse role issued by the Board and is in good standing with the Board; and

2. Has completed a minimum of six thousand two hundred forty (6,240) clinical practice hours with prescriptive authority supervised by a physician. This paragraph shall not be construed to exclude practice hours with supervised prescriptive authority obtained prior to ~~the effective date of this act~~ November 1, 2025, from being counted toward the hours required in this paragraph.

C. An application for independent prescriptive authority made under this section shall not be considered an initial application for prescriptive authority as described in paragraph 3 of Section 567.4a of this title. The Board shall not require an Advanced Practice Registered Nurse applying for independent prescriptive authority under this section to recomplete any minimal requirements for initial application for prescriptive authority as described in paragraph 3 of Section 567.4a of this title.

D. Independent prescriptive authority granted under this section shall be valid until the expiration of the current license to practice and may be renewed upon application to the Board at the same time and for the same period as the renewal of the license to practice.

~~D.~~ E. The Board may suspend or revoke independent prescriptive authority granted under this section in accordance with the Administrative Procedures Act for violation of the provisions of, or the rules promulgated under, the Oklahoma Nursing Practice Act.

~~E.~~ F. The Board may assess a reasonable fee for the review of initial and renewal applications under the provisions of this section.

SECTION 3. This act shall become effective November 1, 2026.

Passed the Senate the 23rd day of March, 2026.

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Presiding Officer of the Senate

Passed the House of Representatives the 28th day of April, 2026.

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Presiding Officer of the House  
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this \_\_\_\_\_

day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

By: \_\_\_\_\_

Approved by the Governor of the State of Oklahoma this \_\_\_\_\_

day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

\_\_\_\_\_  
Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this \_\_\_\_\_

day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

By: \_\_\_\_\_